

HB 1778 -- MISSOURI RELIGIOUS FREEDOM PROTECTION ACT

SPONSOR: Loy

COMMITTEE ACTION: Voted "Do Pass" by the Standing Committee on Emerging Issues by a vote of 8 to 4. Voted "Do Pass" by the Standing Committee on Rules-Administrative by a vote of 7 to 1 with one member voting present.

This bill establishes the "Missouri Religious Freedom Protection Act". The bill specifies that no public official can issue an order that has the effect of limiting or prohibiting a religious group or place of worship from holding religious services or meetings.

The prohibition does not apply to religious groups using places of worship to intentionally commit or plan acts of violence.

This prohibition is not to be interpreted to exempt places of worship from complying with applicable building and fire codes.

This bill is similar to HB 75 (2025).

PROPOSERS: Supporters say that this bill will clarify constitutionally protected religious rights. Supporters further state that without this clarification, faith communities would be subject to local officials having the ability to prevent church services or gatherings. This bill would serve as a preemptive measure to ensure that COVID-like policies will not happen again, in which churches were ordered not to conduct regular services.

Testifying in person for the bill were Representative Loy; Arnie Dienoff; and Americans For Prosperity.

OPPOSERS: Those who oppose the bill say that this bill would go too far in its objectives, primarily because it would effectively tie the hands of public health officials whose job it is to protect all citizens, especially during a pandemic. Opponents further state that courts already serve as a check against overreach when local officials pass unneeded laws, rules, or regulations, and churches should not receive a special exemption.

Testifying in person against the bill were American Civil Liberties Union of Missouri; and Brian Kaylor, Word&Way.

Written testimony has been submitted for this bill. The full written testimony and witnesses testifying online can be found under Testimony on the bill page on the House website.